



**Order under Section 78(11)  
Residential Tenancies Act, 2006**

**Citation:** YANG v BRODIE, 2025 ONLTB 94093

**Date:** 2025-12-18

**File Numbers:** LTB-L-090897-25-SA  
LTB-L-090913-25-SA

**In the matter of:** 1, 143 EAST AVE N  
HAMILTON ON L8L5H8

**Between:** BEILI YANG Landlord

**And**

SHANNON BRODIE Tenant

BEILI YANG (the 'Landlord') applied for an order to terminate the tenancy and evict SHANNON BRODIE (the 'Tenant') and for an order to have the Tenant pay the rent they owe because the Tenant did not meet a condition specified:

- in the order issued by the LTB on June 11, 2025 with respect to application LTB-L-021025-25. This application was resolved, without a hearing, by order LTB-L-090897-25, issued November 3, 2025.
- in the order issued by the LTB on January 24, 2025 with respect to application LTB-L-065710-24. This application was resolved, without a hearing, by order LTB-L-090913-25, issued on November 3, 2025.

The Tenant filed requests to set aside orders LTB-L-090897-25 and LTB-L-090913-25.

These motions were heard by videoconference on December 10, 2025. The Landlord and the Tenant attended the hearing.

**Determinations:**

1. The Landlord filed an L1 application for non-payment of rent which was resolved by consent order LTB-L-021025-25 issued June 11, 2025. The order provided that the Landlord could apply to the Board under section 78 of the *Residential Tenancies Act, 2006* (the 'Act') without notice to the Tenant to terminate the tenancy and evict the Tenant if they failed to make the arrears and rental payments specified in the order.
2. The Landlord also filed an L1 application for non-payment of rent which was resolved by conditional order LTB-L-065710-25 issued January 24, 2025. The order provided that the Landlord could apply to the Board under section 78 of the *Residential Tenancies Act, 2006* (the 'Act') without notice to the Tenant to terminate the tenancy and evict the Tenant if they failed to make the arrears and rental payments specified in the order.

### The Breaches of the Orders

3. There is no dispute that the Tenant breached order LTB-L-021025-25 issued June 11, 2025, by failing to pay \$870.94 on or before October 15, 2025. The Tenant indicates that this was a repayment of funds she had been given pursuant to an N12 notice of termination and the termination did not materialize.
4. There is also no dispute that the Tenant breached order LTB-L-065710-25 issued January 24, 2025, by failing to pay the arrears payment of \$70.00 on or before October 15, 2025.

### The Tenant's Motions

5. These motions are brought pursuant to subsection 78(11) of the Act. As I am satisfied that the Tenant breached orders LTB-L-021025-25 and LTB-L-065710-25, both issued on October 15, 2025, the only issue before me is whether I am "satisfied, having regard to all the circumstances, that it would not be unfair to set aside the order".
6. The circumstances here are that the Tenant did make the required payments before the breaches. However, the Tenant reached out to housing stability benefit ('HSB') and they agreed to address all of the outstanding arrears on the Tenant's behalf. The Tenant submits that the HSB wanted an up-to-date rent ledger to confirm how much the Landlord was owed given the payments which the Tenant had already made. However, the Landlord would not respond to any requests made by HSB. The Tenant also sent the Landlord an e-mail on September 9 and 14, 2025, informing the Landlord she had HSB approval and requesting the Landlord's co-operation.
7. The Tenant also submits that her November and December rent were paid in full and on time. She has lived in the rental unit for eight years.

8. I am satisfied, having regard to all the circumstances, that it would not be unfair to set aside the October 15, 2025, orders. I say this because the Tenant has made several efforts to address the arrears, and it is the Landlord who has failed to respond to the Tenant's and her agent's requests to resolve the matter. The Landlord agrees she received the phone calls and does not dispute that she did not return the calls. She feels she should not have to work with third parties, particularly when there are Board orders already in place.
9. Although the Board can understand that it may be frustrating to deal with third parties, the Landlord has an obligation to minimize their losses pursuant to s.16 of the Act, which states: "When a landlord or a tenant becomes liable to pay any amount as a result of a breach of a tenancy agreement, the person entitled to claim the amount has a duty to take reasonable steps to minimize the person's losses." The evidence shows that the Landlord could have, had she responded to the calls from HSB, been made whole as early as September 2025.
10. The Landlord submits this is the third time over the eight-year tenancy that the parties have been before the Board, the last time about two years ago. However, the matters before me could have been avoided had the Landlord responded to the calls from HSB and the requests from the Tenant. Given this, I am not persuaded that the Landlord has taken reasonable steps to avoid being at the Board again.
11. The Landlord indicates they paid for the Sheriff's enforcement, \$319.00; a copy of the receipt was filed in evidence. I am not persuaded that the Landlord should be reimbursed for these costs. As the Landlord intentionally put roadblocks in the way of the Tenant's ability to satisfy the orders, I am not satisfied that it is appropriate to award the Sheriff's fees. The Landlord did not minimize her losses by working collaboratively with HSB so that she would be paid. Had she done so, she would not have incurred the cost of the Sheriff's fees.

**It is ordered that:**

1. The motions to set aside Orders LTB-L-090897-25 and LTB-L-090913-25, issued on November 3, 2025, are granted.
2. Orders LTB-L-090897-25, and LTB-L-090913-25, issued on November 3, 2025, are set aside and cannot be enforced.
3. Order LTB-L-021025-25, issued June 11, 2025, and Order LTB-L-065710-25, issued January 24, 2025, are cancelled and replaced with the following:
  1. On or before January 9, 2026, the Tenant shall pay to the Landlord \$2,486.82, which represents the arrears of rent and costs of filing the applications.

2. The Tenant shall also pay to the Landlord new rent on time and in full as it comes due and owing for the month of January 2026 or until the arrears are paid in full, whichever date is earliest.
3. If the Tenant fails to comply with the conditions set out in paragraph 1 and 2 of this order, the Landlord may apply under section 78 of the *Residential Tenancies Act, 2006* (the 'Act') for an order terminating the tenancy and evicting the Tenant. The Landlord must make the application within 30 days of a breach of a condition. This application is made to the LTB without notice to the Tenant.

**December 18, 2025**

**Date Issued**

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Jane Dean

Member, Landlord and Tenant Board

15 Grosvenor Street, Ground Floor Toronto  
ON M7A 2G6

If you have any questions about this order, call 416-645-8080 or toll free at 1-888-332-3234.